

25CHCV00837 25CHCV00837

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 25CHCV00837 Hearing Date: September 24, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

SEPTEMBER 23,

2026

MOTION TO BE

RELIEVED AS COUNSEL

Los Angeles Superior Court Case # 25CHCV00837

Motion filed: 6/29/26

Amended motion filed: 8/26/26

MOVING ATTORNEY: Nathan Mubasher ("Counsel")

CLIENT: Defendants Gentle Care Services Hospice,
Inc.; and Gabriel Castillo (collectively, "Defendants")

OPPOSING PARTY: Plaintiff Monica Noriega
("Plaintiff")

NOTICE: OK

RELIEF REQUESTED: An order relieving Counsel as attorney of record for Defendants.

TENTATIVE RULING: The motion is granted.

In a civil action, an attorney may move to be relieved as counsel at any time during the proceedings after giving notice to his client. (Code Civ. Proc. § 284.) The moving attorney shall file with his motion: (1) a notice of the motion, directed to the client using Judicial Council form MC-051; (2) a declaration in support of the motion using Judicial Council form MC-052; and (3) a proposed order granting the motion; all to be served on the client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362.)

In his declaration, the moving attorney is required to state "in general terms, and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Id., subd. (c).) The client must be provided no less than five days' notice before hearing on the motion. An attorney may withdraw from a case when it can be accomplished without undue prejudice to the client's interests. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) On the other hand, if the attorney withdraws at a critical point in the action, thereby prejudicing his client, he has violated her ethical duties. (Ibid.)

Here, Counsel filed this motion to be relieved as counsel for Defendants on 6/29/26, and filed an amended motion on 8/26/26. Counsel declares that that the motion and accompanying papers have been mailed to the client's last known address, confirmed by telephone. (Am. Decl. Nathan Mubasher ¶¶ 3b.) Counsel has also served Plaintiff with the instant motion.

Counsel filed an accompanying notice of the motion using Judicial Council form MC-051, a declaration in support of his motion using form MC-052, and a proposed order granting the motion using form MC-053. In the MC-052 declaration, Counsel states that "there

has been a breakdown in communication between counsel and counsel's clients (specifically, Defendant Gabriel O. Castillo and Defendant Gentle Care Services Hospice, Inc., all of whom are currently represented by counsel). The breakdown is such that I am unable to communicate effectively with the clients and to obtain the clients' cooperation in my continued representation in this matter. (Id. at ¶ 2.) The next hearing date in this action is for a motion to compel further discovery responses on 11/20/26. No jury trial has been set. Therefore, Counsel's withdrawal does not raise the risk of unduly prejudicing his client.

On 9/11/26, Plaintiff filed an opposition to the instant motion, arguing that "withdrawal would create delay, invite further procedural gamesmanship, and obstruct Plaintiff's ability to enforce and collect on a judgment she has already obtained." (Pl.'s Opp. 6:22–24.) Plaintiff further suggests that Counsel's statement that "there has been a breakdown in communication between counsel and counsel's clients" contradicts Counsel's statement that Defendants' address was confirmed by telephone. The Court is not persuaded by Plaintiff's arguments.

As Counsel observes, "Plaintiff cites no authority holding that potential prejudice to the opposing party defeats a rule-compliant withdrawal motion." (Reply 2:7–9.) Counsel further clarifies that he "did not declare that no communication whatsoever has occurred. He declared that the breakdown is such that he is unable to communicate effectively with the clients and to obtain their cooperation in his continued representation." (Id. at 2:22–25.) "Item 3 of the MC-052 directs counsel to state that the client's address was confirmed within the past 30 days and how it was confirmed." (Id. at 3:2–3.)

Based on the foregoing, the Court finds that Counsel has satisfied the statutory requirements for the instant motion to be relieved as Defendants' counsel. Accordingly, the motion is granted.